

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RICANIA REYES, CECILIA REYES,
ROSA COUVERTIER and CHANTEL COUVERTIER,

Plaintiffs

- against -

THE CITY OF NEW YORK,
POLICE OFFICER TASHEKA SMITH (shield # 18622),
DETECTIVE MELISSA NEGRON (shield # 5023),
POLICE OFFICER ROOSVELT MONESTIME
(shield # 11216),
POLICE OFFICER HANNA COTTIGNIES (shield # 468),
POLICE OFFICER ANDREW GARCIA (shield # 7985),

Defendants.

-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
September 23, 2024


THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiffs
295 Madison Avenue, 12th Floor
New York, NY 10017
(212) 939-7251

Index No.
Purchased 9-23-24

Plaintiffs designate Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
RICANIA REYES, CECILIA REYES,
ROSA COUVERTIER and CHANTEL COUVERTIER,

Index No.
Verified Complaint

Plaintiffs,

- against -

THE CITY OF NEW YORK,
POLICE OFFICER TASHEKA SMITH (shield # 18622),
DETECTIVE MELISSA NEGRON (shield # 5023),
POLICE OFFICER ROOSVELT MONESTIME
(shield # 11216),
POLICE OFFICER HANNA COTTIGNIES (shield # 468),
POLICE OFFICER ANDREW GARCIA (shield # 7985),

Defendants.

-----X

Plaintiffs, RICANIA REYES, CECILIA REYES, ROSA COUVERTIER and CHANTEL
COUVERTIER, by their attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S.
KAY, principal, complaining of the Defendants, respectfully shows to this Court and alleges the
following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, each Plaintiff was a resident of State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"),
was and still is a municipal corporation organized and existing under and by virtue of the laws of
the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT
("POLICE"), was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendants POLICE OFFICER TASHEKA SMITH

(shield # 18622)(“P.O. SMITH”), DETECTIVE MELISSA NEGRON (shield # 5023)(“DET. NEGRON”), POLICE OFFICER ROOSVELT MONESTIME (shield # 11216)(“P.O. MONESTIME”), POLICE OFFICER HANNA COTTIGNIES (shield # 468)(“P.O. COTTIGNIES”) and POLICE OFFICER ANDREW GARCIA (shield # 7985)(“P.O. GARCIA”), were and still are officers employed by Defendants.

RICANIA REYES:

5. On August 18, 2023, at approximately 10:00 p.m., in the vicinity of Nelson Avenue and West 165th Street in Bronx County, without just cause or provocation, Defendants, including P.O. SMITH and DET. NEGRON, approached Plaintiff, struck Plaintiff, slammed Plaintiff against a wall, tased Plaintiff and violently handcuffed Plaintiff.

6. Plaintiff RICANIA REYES was taken to a police precinct and then to a local hospital to be treated for her injuries.

7. Plaintiff RICANIA REYES sustained a fractured finger as well as head and back pain.

8. After the hospital, Plaintiff RICANIA REYES was returned to the police precinct and then was taken to Bronx County Central Booking.

9. The Defendants intentionally and falsely accused Plaintiff RICANIA REYES of having committed the crime of Assault in the Second Degree and related charges.

10. On or about August 20, 2023, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff RICANIA REYES commenced.

11. Plaintiff RICANIA REYES remained in custody until she was released on or about August 20, 2023.

12. Plaintiff RICANIA REYES had to defend against false charges until the criminal matter

was terminated in Plaintiff's favor on September 15, 2023.

13. On October 2, 2023, Plaintiff RICANIA REYES served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

14. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.

15. A 50-H hearing has been held.

16. This action has been commenced within one year and ninety days after the cause of action accrued.

17. Plaintiff RICANIA REYES has duly complied with all conditions' precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT OF RICANIA REYES

18. Paragraphs 1-17 are incorporated by reference as fully set forth herein.

19. Plaintiff RICANIA REYES was aware of Plaintiff's arrest and confinement as described in paragraphs 6-12, and Plaintiff did not consent to that arrest or confinement.

20. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

21. As a result of being falsely imprisoned by the Defendants, Plaintiff RICANIA REYES sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation, and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION OF RICANIA REYES

22. Paragraphs 1-21 are incorporated by reference as though fully set forth herein.

23. In arresting Plaintiff RICANIA REYES, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff.

24. Upon information and belief, the Defendants, including P.O. SMITH and DET. NEGRON, generated police paperwork that contained false and misleading information.

25. Upon information and belief, the Defendants, including P.O. SMITH and DET. NEGRON, provided the Bronx County District Attorney's Office with false and misleading information—including the false claim that Plaintiff RICANIA REYES assaulted DET. NEGRON.

26. All charges pending against Plaintiff RICANIA REYES were dismissed and sealed upon the application of the Bronx County District Attorney on September 15, 2023.

27. As a result of being maliciously prosecuted by the Defendants, Plaintiff RICANIA REYES sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

THIRD CAUSE OF ACTION: BATTERY ON RICANIA REYES

28. Paragraphs 1-27 are incorporated by reference as though fully set forth herein.

29. When the Defendants, including P.O. SMITH and DET. NEGRON, struck Plaintiff RICANIA REYES, slammed Plaintiff against a wall, tased Plaintiff and violently handcuffed Plaintiff, they subjected Plaintiff to a harmful or offensive bodily contact. The Defendants, including P.O. SMITH and DET. NEGRON, intended to make that contact without the consent of Plaintiff RICANIA REYES.

30. As a result of being battered by the Defendants, Plaintiff RICANIA REYES sustained

physical injuries including a fractured finger and substantial pain to her head and back. Plaintiff RICANIA REYES also sustained psychological injuries including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

FOURTH CAUSE OF ACTION: ASSAULT ON RICANIA REYES

31. Paragraphs 1-30 are incorporated by reference as though fully set forth herein.

32. P.O. SMITH and DET. NEGRON, acting as the agents, servants and employees of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact by approaching, striking and tasing Plaintiff.

33. As a result of being assaulted by P.O. SMITH AND DET. NEGRON, Plaintiff RICANIA REYES sustained physical injuries including a fractured finger and substantial pain to her head and back. Plaintiff RICANIA REYES also sustained psychological injuries including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

CECILIA REYES

34. On August 18, 2023, at approximately 10:00 p.m., in the vicinity of Nelson Avenue and West 165th Street in Bronx County, without just cause or provocation, Defendants, including P.O. MONESTIME and P.O. COTTIGNIES, approached Plaintiff, struck Plaintiff in the face, slammed Plaintiff to the ground, struck Plaintiff while she was on the ground and violently handcuffed Plaintiff. Shortly thereafter, the Defendants dragged Plaintiff to the police vehicle while Plaintiff's breasts were completely exposed.

35. Plaintiff CECILIA REYES was taken to a police precinct and then to Bronx County Central Booking.

36. The Defendants intentionally and falsely accused Plaintiff CECILIA REYES of having

committed the crime of Assault in the Second Degree and related charges.

37. On or about August 20, 2023, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff CECILIA REYES commenced.

38. Plaintiff CECILIA REYES remained in custody until she was released on or about August 20, 2023.

39. Plaintiff CECILIA REYES had to defend against false charges until the criminal matter was terminated in Plaintiff's favor on September 15, 2023.

40. On October 2, 2023, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

41. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.

42. A 50-H hearing has been held.

43. This action has been commenced within one year and ninety days after the cause of action accrued.

44. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

FIFTH CAUSE OF ACTION: FALSE IMPRISONMENT OF CECILIA REYES

45. Paragraphs 1-44 are incorporated by reference as fully set forth herein.

46. Plaintiff CECILIA REYES was aware of Plaintiff's arrest and confinement as described in paragraphs 34-38, and Plaintiff did not consent to that arrest or confinement.

47. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

48. As a result of being falsely imprisoned by the Defendants, Plaintiff CECILIA REYES sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SIXTH CAUSE OF ACTION: MALICIOUS PROSECUTION OF CECILIA REYES

49. Paragraphs 1-48 are incorporated by reference as though fully set forth herein.

50. In arresting Plaintiff CECILIA REYES, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff.

51. Upon information and belief, the Defendants, including P.O. MONESTIME and P.O. COTTIGNIES, generated police paperwork that contained false and misleading information.

52. Upon information and belief, the Defendants, including P.O. MONESTIME and P.O. COTTIGNIES, provided the Bronx County District Attorney's Office with false and misleading information—including the false claim that Plaintiff CECILIA REYES assaulted a police officer,

53. All charges pending against Plaintiff CECILIA REYES were dismissed and sealed upon the application of the Bronx County District Attorney on September 15, 2023.

54. As a result of being maliciously prosecuted by the Defendants, Plaintiff CECILIA REYES sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

SEVENTH CAUSE OF ACTION: BATTERY ON CECILIA REYES

55. Paragraphs 1-54 are incorporated by reference as though fully set forth herein.

56. When the Defendants, including P.O. MONESTIME and P.O. COTTIGNIES, struck Plaintiff in the face, slammed Plaintiff to the ground, struck Plaintiff while she was on the

ground and violently handcuffed Plaintiff, they subjected Plaintiff CECILIA REYES to a harmful or offensive bodily contact. The Defendants, including P.O. MONESTIME and P.O. COTTIGNIES, intended to make that contact without the consent of Plaintiff.

57. As a result of being battered by the Defendants, Plaintiff CECILIA REYES sustained physical injuries including substantial pain to her head, right eye, wrists and right foot. Plaintiff CECILIA REYES also sustained psychological injuries including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

EIGHTH CAUSE OF ACTION: ASSAULT ON CECILIA REYES

58. Paragraphs 1-57 are incorporated by reference as though fully set forth herein.

59. P.O. MONESTIME and P.O. COTTIGNIES, acting as the agents, servants and employees of the Defendants, placed Plaintiff CECILIA REYES in apprehension of imminent harmful or offensive contact by approaching, striking and slamming Plaintiff to the ground.

60. As a result of being assaulted by P.O. MONESTIME and P.O. COTTIGNIES, Plaintiff CECILIA REYES sustained physical injuries including substantial pain to her head, right eye, wrists and right foot. Plaintiff CECILIA REYES also sustained psychological injuries including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

ROSA COUVERTIER:

61. On August 18, 2023, at approximately 10:00 p.m., in the vicinity of Nelson Avenue and West 165th Street in Bronx County, without just cause or provocation, Defendants, including P.O. GARCIA and P.O. COTTIGNIES, approached Plaintiff and violently handcuffed Plaintiff ROSA COUVERTIER. Next, the Defendants, including P.O. GARCIA and P.O. COTTIGNIES, dragged Plaintiff to a police vehicle while Plaintiff was shoeless.

62. Plaintiff ROSA COUVERTIER was taken to a police precinct. Next, Plaintiff was taken to a local hospital to be treated for her injuries. Thereafter, Plaintiff was taken to Bronx County Central Booking.

63. The Defendants intentionally and falsely accused Plaintiff ROSA COUVERTIER of having committed the crime of Assault in the Second Degree and related charges.

64. On or about August 20, 2023, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff ROSA COUVERTIER commenced.

65. Plaintiff ROSA COUVERTIER remained in custody until she was released on or about August 20, 2023.

66. Plaintiff ROSA COUVERTIER had to defend against false charges until the criminal matter was terminated in favor of Plaintiff on September 15, 2023.

67. On October 2, 2023, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

68. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.

69. A 50-H hearing has been held.

70. This action has been commenced within one year and ninety days after the cause of action accrued.

71. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

NINTH CAUSE OF ACTION: FALSE IMPRISONMENT OF ROSA COUVERTIER

72. Paragraphs 1-71 are incorporated by reference as fully set forth herein.

73. Plaintiff ROSA COUVERTIER was aware of Plaintiff's arrest and confinement as described in paragraphs 61-65, and Plaintiff did not consent to that arrest or confinement.

74. Defendants intended to confine Plaintiff ROSA COUVERTIER and the confinement was not privileged or authorized by any warrant, order, or other legal right.

75. As a result of being falsely imprisoned by the Defendants, Plaintiff ROSA COUVERTIER sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation, and fear and intimidation for Plaintiff's safety.

TENTH CAUSE OF ACTION: MALICIOUS PROSECUTION OF ROSA COUVERTIER

76. Paragraphs 1-75 are incorporated by reference as though fully set forth herein.

77. In arresting Plaintiff ROSA COUVERTIER the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff.

78. Upon information and belief, the Defendants, including P.O. GARCIA and P.O. COTTIGNIES, generated police paperwork that contained false and misleading information.

79. Upon information and belief, the Defendants, including, P.O. GARCIA and P.O. COTTIGNIES, provided the Bronx County District Attorney's Office with false and misleading information—including the false claim that Plaintiff ROSA COUVERTIER assaulted a police officer.

80. All charges pending against Plaintiff ROSA COUVERTIER were dismissed and sealed upon the application of the Bronx County District Attorney on September 15, 2023.

81. As a result of being maliciously prosecuted by the Defendants, Plaintiff ROSA COUVERTIER sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

ELEVENTH CAUSE OF ACTION: BATTERY ON ROSA COUVERTIER

82. Paragraphs 1-81 are incorporated by reference as though fully set forth herein.

83. When the Defendants, including P.O. GARCIA and P.O. COTTIGNIES, violently handcuffed Plaintiff, they subjected Plaintiff ROSA COUVERTIER to a harmful or offensive bodily contact. The Defendants, including P.O. GARCIA and P.O. COTTIGNIES, intended to make that contact without the consent of Plaintiff ROSA COUVERTIER.

84. As a result of being battered by the Defendants, Plaintiff ROSA COUVERTIER sustained physical injuries including pain to her face, right arm, shoulders and back. Plaintiff ROSA COUVERTIER also sustained psychological injuries including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

TWELFTH CAUSE OF ACTION: ASSAULT ON ROSA COUVERTIER

85. Paragraphs 1-84 are incorporated by reference as though fully set forth herein.

86. P.O. GARCIA and P.O. COTTIGNIES, acting as the agents, servants and employees of the Defendants, placed Plaintiff ROSA COUVERTIER in apprehension of imminent harmful or offensive contact by approaching Plaintiff, violently handcuffing Plaintiff and dragging Plaintiff to a police vehicle.

87. As a result of being assaulted by P.O. GARCIA and P.O. COTTIGNIES, Plaintiff ROSA COUVERTIER sustained physical injuries including pain to her face, right arm, shoulders and back. Plaintiff ROSA COUVERTIER also sustained psychological injuries

including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

CHANTEL COUVERTIER:

88. On August 18, 2023, at approximately 10:00 p.m., in the vicinity of Nelson Avenue and West 165th Street in Bronx County, without just cause or provocation, Defendants, including P.O. GARCIA and P.O. COTTIGNIES approached Plaintiff CHANTEL COUVERTIER, banged Plaintiff's head against the building's intercom system, handcuffed Plaintiff and carried Plaintiff to a police vehicle.

89. Plaintiff CHANTEL COUVERTIER was taken to a police precinct. Thereafter, Plaintiff was taken to Bronx County Central Booking.

90. The Defendants intentionally and falsely accused Plaintiff CHANTEL COUVERTIER of having committed the crime of Assault in the Second Degree and related charges.

91. On or about August 20, 2023, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff commenced.

92. Plaintiff CHANTEL COUVERTIER remained in custody until she was released on or about August 20, 2023.

93. Plaintiff CHANTEL COUVERTIER had to defend against false charges until the criminal matter was terminated in Plaintiff's favor on September 15, 2023.

94. On October 12, 2023, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

95. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.

96. A 50-H hearing has been held.

97. This action has been commenced within one year and ninety days after the cause of action accrued.

98. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

THIRTEENTH CAUSE OF ACTION: FALSE IMPRISONMENT OF

CHANTEL COUVERTIER

99. Paragraphs 1-98 are incorporated by reference as fully set forth herein.

100. Plaintiff CHANTEL COUVERTIER was aware of Plaintiff's arrest and confinement as described in paragraphs 88-92, and Plaintiff did not consent to that arrest or confinement.

101. Defendants intended to confine Plaintiff CHANTEL COUVERTIER and the confinement was not privileged or authorized by any warrant, order, or other legal right.

102. As a result of being falsely imprisoned by the Defendants, Plaintiff CHANTEL COUVERTIER sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation, and fear and intimidation for Plaintiff's safety.

FOURTEENTH CAUSE OF ACTION: MALICIOUS PROSECUTION OF

CHANTEL COUVERTIER

103. Paragraphs 1-102 are incorporated by reference as though fully set forth herein.

104. In arresting Plaintiff CHANTEL COUVERTIER, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff.

105. Upon information and belief, the Defendants, including P.O. GARCIA and P.O. COTTIGNIES, generated police paperwork that contained false and misleading information.

106. Upon information and belief, the Defendants, including, P.O. GARCIA and P.O. COTTIGNIES, provided the Bronx County District Attorney's Office with false and misleading information—including the false claim that Plaintiff CHANTEL COUVERTIER assaulted a police officer,

107. All charges pending against Plaintiff CHANTEL COUVERTIER were dismissed and sealed upon the application of the Bronx County District Attorney on September 14, 2023.

108. As a result of being maliciously prosecuted by the Defendants, Plaintiff CHANTEL COUVERTIER sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

FIFTEENTH CAUSE OF ACTION: BATTERY ON CHANTEL COUVERTIER

109. Paragraphs 1-108 are incorporated by reference as though fully set forth herein.

110. When the Defendants, including P.O. GARCIA and P.O. COTTIGNIES, approached Plaintiff, banged Plaintiff's head against the building's intercom system, handcuffed Plaintiff and carried Plaintiff to a police vehicle, they subjected Plaintiff CHANTEL COUVERTIER to a harmful or offensive bodily contact. The Defendants, including P.O. GARCIA and P.O. COTTIGNIES, intended to make that contact without the consent of Plaintiff CHANTEL COUVERTIER.

111. As a result of being battered by the Defendants, Plaintiff CHANTEL COUVERTIER sustained physical injuries including pain to her wrists and thumbs. Plaintiff CHANTEL COUVERTIER also sustained psychological injuries including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

SIXTEENTH CAUSE OF ACTION: ASSAULT ON CHANTEL COUVERTIER

112. Paragraphs 1-111 are incorporated by reference as though fully set forth herein.

113. P.O. GARCIA and P.O. COTTIGNIES, acting as the agents, servants and employees of the Defendants, placed Plaintiff CHANTEL COUVERTIER in apprehension of imminent harmful or offensive contact by approaching Plaintiff, banging Plaintiff's head against the building's intercom system, handcuffing Plaintiff and carrying Plaintiff to a police vehicle.

114. As a result of being assaulted by P.O. GARCIA and P.O. COTTIGNIES, Plaintiff CHANTEL COUVERTIER sustained physical injuries including pain to her wrists and thumbs. Plaintiff CHANTEL COUVERTIER also sustained psychological injuries including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

WHEREFORE, Plaintiffs demand judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
September 23, 2024

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY


BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212) 939-7251

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RICANIA REYES, CECILIA REYES,
ROSA COUVERTIER and CHANTEL COUVERTIER,

Index No.

VERIFICATION

Plaintiffs

-against-

THE CITY OF NEW YORK,
POLICE OFFICER TASHEKA SMITH (shield # 18622),
DETECTIVE MELISSA NEGRON (shield # 5023),
POLICE OFFICER ROOSVELT MONESTIME
(shield # 11216),
POLICE OFFICER HANNA COTTIGNIES (shield # 468),
POLICE OFFICER ANDREW GARCIA (shield # 7985),

Defendants

-----X

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State,
state that I am the attorney of record for Plaintiffs in the within action; I have read the foregoing
and know the contents thereof; the same is true to my own knowledge, except as to the matters
therein stated to be alleged on information and belief, and as to those matters I believe it to be true.
The reason this verification is made by me and not the Plaintiffs is because the Plaintiffs currently
resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
September 23, 2024



ELLIOT S. KAY